

IN THE SENATE

SENATE BILL NO. 1448

BY JUDICIARY AND RULES COMMITTEE

AN ACT

RELATING TO MINORS; AMENDING SECTION 18-1514, IDAHO CODE, TO DEFINE TERMS, TO REVISE DEFINITIONS, TO REMOVE A DEFINITION, AND TO MAKE TECHNICAL CORRECTIONS; AMENDING SECTION 18-1515, IDAHO CODE, TO REVISE PROVISIONS REGARDING DISSEMINATING MATERIAL HARMFUL TO MINORS; AMENDING SECTION 18-1517B, IDAHO CODE, TO REVISE PROVISIONS REGARDING CHILDREN'S SCHOOL AND LIBRARY PROTECTION; AMENDING SECTION 18-4105, IDAHO CODE, TO REVISE A CODE REFERENCE; AMENDING SECTION 67-6533, IDAHO CODE, TO REVISE A REFERENCE; AND DECLARING AN EMERGENCY AND PROVIDING AN EFFECTIVE DATE.

Be It Enacted by the Legislature of the State of Idaho:

SECTION 1. That Section 18-1514, Idaho Code, be, and the same is hereby amended to read as follows:

18-1514. OBSCENE MATERIALS -- DEFINITIONS. The following definitions are applicable to this act:

(1) "Adolescent minor" means any person thirteen (13) years of age or older but less than eighteen (18) years of age.

~~1.~~ (2) "Minor" means any person less than eighteen (18) years of age.

~~2.~~ (3) "Nudity" means the showing of the human male or female genitals, pubic area or buttocks with less than a full opaque covering, or the showing of the female breast with less than a full opaque covering of any portion thereof below the top of the nipple, or the depiction of covered male genitals in a discernibly turgid state.

~~3.~~ (4) "Sexual conduct" means any act of masturbation, homosexuality, sexual intercourse, or physical contact with a person's clothed or unclothed genitals, pubic area, buttocks or, if such person be a female, the breast. Breastfeeding, childbearing, medical procedures and examinations, and any other nonerotic physical contact shall not be considered sexual conduct.

~~4.~~ (5) "Sexual excitement" means the condition of human male or female genitals when in a state of sexual stimulation or arousal.

~~5.~~ (6) "Sado-masochistic abuse" means flagellation or torture by or upon a person who is nude or clad in undergarments, a mask or bizarre costume, or the condition of being fettered, bound or otherwise physically restrained on the part of one who is nude or so clothed.

~~6.~~ (7) (a) "Harmful to minors" includes in its meaning means the quality of any material or of any performance or of any description or representation, in whatever form, of nudity, sexual conduct, sexual excitement, or sado-masochistic abuse, when it:

~~(a) (i) Appeals Taken as a whole, appeals to the prurient interest of adolescent minors as judged by the average person, applying contemporary community standards; and~~

~~(b)~~ (ii) Depicts or describes representations or descriptions of nudity, sexual conduct, sexual excitement, or sado-masochistic abuse which are patently offensive to prevailing standards in the adult community with respect to what is suitable material for adolescent minors and includes, but is not limited to, patently offensive representations or descriptions of:

~~(i)~~ 1. Intimate sexual acts, normal or perverted, actual or simulated; or

~~(ii)~~ 2. Masturbation, excretory functions or lewd exhibition of the genitals or genital area. ~~Nothing herein contained is intended to include or proscribe any matter which, when considered as a whole, and in context in which it is used, possesses serious literary, artistic, political or scientific value for minors.~~

(b) "Harmful to minors" shall not include material that, when considered as a whole, possesses serious literary, artistic, political, or scientific value for adolescent minors.

~~7. (8) "Material" means anything tangible which is harmful to minors, whether derived through the medium of reading, observation, or sound, including any picture, photograph, drawing, sculpture, motion picture, film, or similar visual representation or image or any book, pamphlet, magazine, printed matter however reproduced, or sound recording.~~

~~8. "Performance" means any play, motion picture, dance or other exhibition performed before an audience.~~

9. (9) "Promote" means to manufacture, issue, sell, give, provide, deliver, publish, distribute, circulate, disseminate, present, exhibit or advertise, or to offer or agree to do the same.

~~10. (10) "Knowingly" means having general knowledge of, or reason to know, or a belief or reasonable ground for belief that warrants further inspection or inquiry.~~

~~11. (11) "School" means any public or private school providing instruction for students in kindergarten through grade 12.~~

(12) "Sexually explicit" means the quality of any material when it contains erotic depictions of nudity, depicts sexual conduct or sado-masochistic abuse, or contains any explicit and detailed description or narrative account of sexual excitement, sexual conduct, or sado-masochistic abuse. "Sexually explicit" shall not include diagrams about anatomy for scientific education, religious books such as the Bible and the Torah, or content relating to classical works of art.

SECTION 2. That Section 18-1515, Idaho Code, be, and the same is hereby amended to read as follows:

18-1515. DISSEMINATING MATERIAL HARMFUL TO MINORS -- DEFINED -- PENALTY. A person is guilty of disseminating material harmful to minors when:

1. He knowingly gives or makes available to a minor or promotes or possesses with intent to promote to minors, or he knowingly sells or loans to a minor for monetary consideration: any material that is sexually explicit and, taken as a whole, is harmful to minors.

~~(a) Any picture, photograph, drawing, sculpture, motion picture film, or similar visual representation or image of a person or portion of the human body which depicts nudity, sexual conduct or sado-masochistic abuse and which is harmful to minors; or~~

~~(b) Any book, pamphlet, magazine, printed matter however reproduced, or sound recording which contains any matter enumerated in paragraph (a) hereof, or explicit and detailed verbal descriptions or narrative accounts of sexual excitement, sexual conduct or sado-masochistic abuse and which, taken as a whole, is harmful to minors; or~~

~~(c) Any other material harmful to minors.~~

2. With reference to a motion picture, show or other presentation ~~which depicts nudity, sexual conduct or sado-masochistic abuse, and which that is sexually explicit and, taken as a whole, is harmful to minors, he knowingly:~~

(a) Exhibits such motion picture, show or other presentation to a minor for a monetary consideration; or

(b) Sells to a minor an admission ticket or pass to premises whereon there is exhibited or to be exhibited such motion picture, show or other presentation; or

(c) Admits a minor for a monetary consideration to premises whereon there is exhibited or to be exhibited such motion picture, show or other presentation; or

(d) Exhibits such motion picture, show or other presentation to a minor not for a monetary consideration; or

(e) Gives without monetary consideration to a minor an admission ticket or pass to premises where there is exhibited or to be exhibited such motion picture, show, or other presentation.

Disseminating material harmful to minors is a misdemeanor punishable by confinement in the county jail not to exceed one (1) year, or by a fine not to exceed one thousand dollars (\$1,000), or by both such fine and jail sentence.

SECTION 3. That Section 18-1517B, Idaho Code, be, and the same is hereby amended to read as follows:

18-1517B. CHILDREN'S SCHOOL AND LIBRARY PROTECTION. (1) This section shall be known and may be cited as the "Children's School and Library Protection Act."

(2) Notwithstanding any other provision of law, a school or public library, or an agent thereof, shall not promote, give, or make available to a minor any material that is sexually explicit and, taken as a whole, is harmful to minors.

~~(a) Any picture, photograph, drawing, sculpture, motion picture film, or similar visual representation or image of a person or portion of the human body that depicts nudity, sexual conduct, or sado-masochistic abuse and that is harmful to minors;~~

~~(b) Any book, pamphlet, magazine, printed matter however reproduced, or sound recording that contains any matter pursuant to paragraph (a) of this subsection or explicit and detailed verbal descriptions or narrative accounts of sexual excitement, sexual conduct, or sado-masochistic abuse and that, taken as a whole, is harmful to minors; or~~

~~(c) Any other material harmful to minors.~~

1 (3) Any minor who obtains material, or parent or legal guardian whose
 2 child obtained material, in violation of the provisions of subsection (2)
 3 of this section from a school or public library shall have a cause of action
 4 against such institution if:

5 (a) The institution gave or made available the material harmful to mi-
 6 ners, or the institution failed to take reasonable steps to restrict ac-
 7 cess by minors to the material harmful to minors;

8 (b) Prior to the filing of a cause of action, the minor, parent, or le-
 9 gal guardian has provided written notice to the school or public library
 10 asking for the relocation of such material to a section designated for
 11 adults only within sixty (60) days of receipt of the written notice; and

12 (c) Upon receipt of written notice and subsequent to the expiration of
 13 sixty (60) days, the institution's library board or board of trustees
 14 failed to relocate the material harmful to minors to an area with adult
 15 access only.

16 (4) Any minor, parent, or legal guardian who prevails in an action
 17 brought under this section may recover two hundred fifty dollars (\$250) in
 18 statutory damages as well as actual damages and any other relief available
 19 by law, including but not limited to injunctive relief sufficient to prevent
 20 the defendant school or public library from violating the requirements of
 21 this section.

22 (5) A county prosecuting attorney or the attorney general shall have a
 23 cause of action for injunctive relief against any school or public library
 24 that violates the provisions of subsection (2) of this section. The injunc-
 25 tion shall be sufficient to prevent the defendant school or public library
 26 from violating the requirements of this section.

27 (6) It shall be an affirmative defense to civil liability under this
 28 section that the defendant:

29 (a) Had reasonable cause to believe that the minor involved was eigh-
 30 teen (18) years of age or older or such minor exhibited to the defendant
 31 a draft card, driver's license, birth certificate, or other official or
 32 apparently official document purporting to establish that the minor was
 33 eighteen (18) years of age or older; or

34 (b) Verified the minor involved was accompanied, at the time of the act,
 35 by his parent or legal guardian, or by another adult and the adult rep-
 36 resented that he was the minor's parent or legal guardian and signed a
 37 written statement to that effect.

38 (7) Each school and public library shall have a policy and readily ac-
 39 cessible form allowing a person to request review of material the person con-
 40 sidered to be harmful to minors. Such form shall contain the definitions of
 41 "sexually explicit" and "harmful to minors," as provided in section 18-1514,
 42 Idaho Code.

43 (8) Any action brought pursuant to this section by or on behalf of a mi-
 44 nor shall be in accordance with the provisions of chapter 9, title 6, Idaho
 45 Code, section 5-306, Idaho Code, and rule 17 of the Idaho rules of civil pro-
 46 cedure.

47 SECTION 4. That Section 18-4105, Idaho Code, be, and the same is hereby
 48 amended to read as follows:

1 18-4105. PUBLIC DISPLAY OF OFFENSIVE SEXUAL MATERIAL -- PENALTY. Any
 2 person who knowingly exhibits or displays or permits to be exhibited or dis-
 3 played any of the following in such a manner that such exhibit or display
 4 is easily visible from any street, sidewalk, thoroughfare, or other public
 5 area; or is visible from any transportation facility; or is visible from any
 6 residence when the person knows that the owner or occupant of such residence
 7 objects to such exhibit or display:

8 (a) Human genitals or pubic area without a full opaque covering, or any
 9 graphic or pictorial depiction thereof, or any depiction of covered male
 10 genitals in a discernibly erect state;

11 (b) An actual or simulated sex act, or sexual contact between humans and
 12 animals, or masturbation, or any graphic or pictorial display thereof; or

13 (c) Any depiction of sado-masochistic abuse, as defined in section
 14 18-1514(5), Idaho Code, is guilty of a misdemeanor.

15 SECTION 5. That Section 67-6533, Idaho Code, be, and the same is hereby
 16 amended to read as follows:

17 67-6533. LOCATION OF STORES SELLING SEXUAL MATERIAL RESTRICTED IN
 18 CERTAIN AREAS. (a) From and after January 1, 1980, no person or entity shall
 19 own or operate any store, shop or business which sells or rents any mate-
 20 rials defined as obscene materials in section 18-4101, Idaho Code, within
 21 twenty-five hundred (2500) feet of any school, church, or place of worship
 22 measured in a straight line to the nearest entrance to the premises.

23 (b) From and after January 1, 1980, no person or entity shall own or op-
 24 erate any store, shop or business which sells or rents any materials defined
 25 ~~in subsection 1 of section 18-1515~~ as harmful to minors and as sexually ex-
 26 plicit pursuant to section 18-1514, Idaho Code, where such materials consti-
 27 tute ten percent (10%) or more of the printed materials held for sale or rent
 28 of such store, shop or business, within twenty-five hundred (2500) feet of
 29 any school, church, or place of worship measured in a straight line to the
 30 nearest entrance to the premises.

31 (c) From and after the effective date of this act, a violation of sub-
 32 section (a) or subsection (b) of this section shall be a misdemeanor.

33 (d) A judge of a court of competent jurisdiction shall immediately is-
 34 sue a temporary restraining order for a violation of subsection (a) or sub-
 35 section (b) of this section upon application therefore by any public or pri-
 36 vate entity or person and upon compliance with the Idaho rules of civil pro-
 37 cedure, except that no bond or security for the issuance of such restraining
 38 order shall be required. Further, a violation of subsection (a) or subsec-
 39 tion (b) of this section shall subject the person and entities therefore to
 40 a preliminary and permanent order of any court of this state enjoining them
 41 from such violation and no bond or security shall be required from the plain-
 42 tiff or applicant therefore.

43 (e) No entity, public or private, nor any person shall be liable for any
 44 damages, costs or attorney fees for any acts attempting to civilly or crimi-
 45 nally enforce this section.

46 (f) Nothing contained in this section shall preempt or prohibit cities
 47 or counties from regulating or restricting the location of the business ac-
 48 tivity described in this section and cities and counties are hereby specifi-

1 cally authorized to so regulate or restrict the location of said business ac-
2 tivity.

3 SECTION 6. An emergency existing therefor, which emergency is hereby
4 declared to exist, this act shall be in full force and effect on and after
5 July 1, 2026.